

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

NNABUGWU CHINEDU ANDREW, AVERS LOGISTICS LTD.,
AND CJ DELUZ NIGERIA LTD., *Complainants*

v.

MARINE TRANSPORT LOGISTICS, INC., ALLA SOLOVYEVA,
AND RAYA BAKHIREV, *Respondents*.

DOCKET NO. 20-12

Served: July 2, 2021

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

ORDER DENYING COMPLAINANTS' MOTION FOR RECONSIDERATION

On June 17, 2021, Complainants filed a petition for reconsideration of the May 6, 2021, Order on Motions to Compel, and the June 11, 2021, Order Requiring Briefing. Complainants argue that reconsideration may be based on any relevant factual misconception; the documents sought regarding four vehicles and one container are part of the seventeen automobiles at issue in this matter; the discovery sought falls within the commission's standard of review for permissible discovery; and production of the discovery is required in order to establish the five elements required in order to maintain a cause of action under 46 U.S.C § 41102(c). Petition for Reconsideration at 3-14.

Respondents oppose the petition for reconsideration, stating that Complainants' motion exceeds the ten-page limit for non-dispositive motions; that Complainants' petition for reconsideration comes more than thirty days after the order it seeks to overturn; and specifically addressing the four vehicles and container for which discovery is sought. Opposition at 1-4.

In this proceeding, Complainants allege that Respondents violated 46 U.S.C. § 41102(c) in connection with the shipping of seventeen vehicles. On February 22, 2021, the day discovery was scheduled to end, Complainants moved for an order compelling MTL to respond to their discovery requests and to revise the established schedule. Respondents opposed Complainants' motion and filed a cross-motion to compel. An order was issued on May 6, 2021, directing Respondents to produce certain storage invoices to Complainants but denying Complainants' motion to compel in all other respects. In addition, Complainants were ordered to provide any responsive documents sought by Respondents in their cross-motion to compel. The parties were instructed to file a joint status report by June 1, 2021, and all briefing for this proceeding was set to be completed by August 4, 2021.

On June 1, 2021, Complainants submitted as the joint status report (“JSR”) a second request to compel Complainants to produce certain discovery and also asked for an extension of the briefing schedule. On June 11, 2021, an Order Requiring Briefing was issued, denying Complainants’ second request to compel and directing the parties to file briefs. The Order stated:

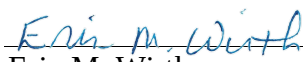
A joint status report is not a motion, thus Complainants’ request fails to satisfy the Commission’s requirements for the filing of motions or for filing requests for reconsideration and is procedurally improper. The request is also substantively improper as Respondents appear to have complied with the order to produce the storage invoices. *See*, Joint Status Report, Appendix C, containing invoices from the Georgia and California warehouses and a copy of MTL’s inventory in the Houston warehouse. Accordingly, Complainants’ request for additional discovery is **DENIED**. No further discovery will be ordered. The parties shall file briefs as set forth in the schedule below and raise any objections or concerns in the briefs.

Order Requiring Briefing at 2.

Complainants’ motion for reconsideration is untimely and thus procedurally improper. As Complainants acknowledge, the discovery they are seeking “has been sought all along” and the motion to compel has already been ruled upon. At this stage of the proceeding, the case has been pending for almost a year, discovery is over, and the parties have been ordered to file their briefs. Any party who believes the other party did not provide relevant requested discovery should raise those arguments in their briefs as previously instructed. If Complainants believe that the vehicles should not have been disposed of as junk, released to other parties, or deny that they refused to pick up the vehicles, as Respondents assert, that should be addressed in the briefs. Accordingly, Complainants’ motion for reconsideration of the order on the motion to compel and the order requiring briefing is **DENIED**.

It is hereby **ORDERED** that the parties comply with the following schedule.

August 2, 2021	Complainants file brief with proposed findings of fact and appendix.
August 30, 2021	Respondents file opposition brief with proposed findings of fact and responses to Complainants’ proposed findings of fact, and appendix.
September 14, 2021	Complainants file reply brief with responses to Respondents’ proposed findings of fact.


Erin M. Wirth
Chief Administrative Law Judge